

An Act

ENROLLED SENATE
BILL NO. 1238

By: Coleman of the Senate

and

Pfeiffer and Moore of the
House

An Act relating to crimes and punishments; amending Section 10, Chapter 366, O.S.L. 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20J), which relates to Class B5 offenses; modifying provisions of certain offense; updating statutory references; amending 21 O.S. 2021, Section 644, as last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), which relates to assault and battery; modifying provisions of certain offense; conforming statutory references; updating statutory language; and providing an effective date.

SUBJECT: Domestic abuse

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 10, Chapter 366, O.S.L. 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20J), is amended to read as follows:

Section 20J. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class B5 shall include the following criminal offenses:

1. Second or subsequent conviction for assault and battery against a current or former intimate partner or a family or household member, as provided for in subsection C of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

2. ~~Second or subsequent conviction for domestic~~ Domestic abuse committed in the presence of a child, as provided for in subsection G of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3. Assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member, as provided for in subsection J of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4. Aggravated assault and battery, as provided for in Section 646 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5. Battery or assault and battery upon a police officer, sheriff, deputy sheriff, highway patrolman, corrections personnel, or other state peace officer, as provided for in subsection B of Section 649 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6. Striking or mistreating a police dog or police horse during the commission of a misdemeanor or felony, as provided for in subsection D of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7. Disfiguring, disabling, or killing a police dog or police horse during the commission of a misdemeanor or felony, as provided for in subsection C of Section 649.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8. Battery or assault and battery resulting in bodily injury to any employee of the Office of Juvenile Affairs or residential facility, as provided for in subsection E of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9. Assault with intent to kill, as provided for in Section 653 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10. Assault with intent to commit any felony, as provided for in Section 681 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11. Manslaughter in the second degree, as provided for in Section 716 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12. Owning a mischievous animal that kills a human being, as provided for in Section 717 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13. Causing, aiding, abetting, or encouraging a minor to commit or participate in committing a felony offense, as provided for in subsection C of Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14. Causing, aiding, abetting, encouraging, soliciting, or recruiting a minor to participate, join, or associate with any criminal street gang, as provided for in subsection D of Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15. Committing a gang-related offense as a condition of membership in a criminal street gang, as provided for in Section 856.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16. Stalking, as provided for in subsection B of Section 1173 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17. Second or subsequent conviction of stalking or committing the act of stalking within ten (10) years of the completion of sentence for a prior conviction of stalking, as provided for in subsection C of Section 1173 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18. Intentionally or recklessly spreading an infectious disease, as provided for in Section 1192.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19. Entering the premises of another while masked or disguised with the intent to inflict bodily injury or injury to property, as provided for in Section 1302 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20. Assault with a dangerous weapon while masked or in disguise, as provided for in Section 1303 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21. Unlawful assembly for the purpose of engaging in a riot, as provided for in Section 1320.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22. Acts of cruelty to animals, as provided for in Section 1685 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23. Instigating or encouraging any cockfight, as provided for in Section 1692.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

24. Keeping a pit or other place or knowingly providing equipment or facilities for cockfighting, as provided for in Section 1692.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

25. Servicing or facilitating a cockfight, as provided for in Section 1692.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

26. Owning, possessing, keeping, or training any bird for cockfighting, as provided for in Section 1692.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

27. Instigating or encouraging any fight between dogs, as provided for in Section 1694 of ~~Title 21 of the Oklahoma Statutes~~ this title;

28. Keeping a house, pit, or other place, or providing any equipment or facilities to be used for any fight between dogs, as provided for in Section 1695 of ~~Title 21 of the Oklahoma Statutes~~ this title;

29. Acting or performing any service in the furtherance of or facilitating any dogfight, as provided for in Section 1696 of ~~Title 21 of the Oklahoma Statutes~~ this title;

30. Owning, possessing, keeping, or training any dog with intent to have such dog fight another dog, as provided for in Section 1697 of ~~Title 21 of the Oklahoma Statutes~~ this title;

31. Failing to stop for an accident resulting in a nonfatal injury to another person, as provided for in Section 10-102 of Title 47 of the Oklahoma Statutes;

32. Personal injury accident while driving or operating a motor vehicle under the influence of alcohol or other intoxicating substance while having a previous conviction for driving or operating a motor vehicle while under the influence of alcohol or other intoxicating substance, as provided for in paragraph 2 of subsection A of Section 11-904 of Title 47 of the Oklahoma Statutes;

33. Failure to register as a sex offender, as provided for in Section 583 of Title 57 of the Oklahoma Statutes;

34. Furnishing false or misleading information in the registration required by the Sex Offenders Registration Act, as provided for in Section 586 of Title 57 of the Oklahoma Statutes;

35. Failure to comply with the Sex Offenders Registration Act, as provided for in subsection A of Section 587 of Title 57 of the Oklahoma Statutes;

36. Failure to comply with established guidelines of ~~global-positioning-system~~ Global Positioning System (GPS) monitoring pursuant to the provisions of the Sex Offenders Registration Act, as provided for in subsection B of Section 587 of Title 57 of the Oklahoma Statutes;

37. Temporarily or permanently residing within a two-thousand-foot radius of a public or private school site or other listed places by a person required to register pursuant to the Sex Offenders Registration Act, as provided for in subsection A of Section 590 of Title 57 of the Oklahoma Statutes;

38. Residing with a minor child after being convicted of an offense that involved a minor child by a person required to register pursuant to the Sex Offenders Registration Act, as provided for in subsection B of Section 590 of Title 57 of the Oklahoma Statutes;

39. Two or more sex offenders residing together in a dwelling during the term of registration as a sex offender, as provided for in subsection A of Section 590.1 of Title 57 of the Oklahoma Statutes; and

40. Establishing, leasing, operating, or owning any structure where persons required to register pursuant to the Sex Offenders

Registration Act are allowed to reside, as provided for in subsection E of Section 590.1 of Title 57 of the Oklahoma Statutes.

B. Any person convicted of a Class B5 criminal offense set forth in this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes.

SECTION 2. AMENDATORY 21 O.S. 2021, Section 644, as last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is amended to read as follows:

Section 644. A. Assault shall be punishable by imprisonment in a county jail ~~not exceeding~~ for not more than ninety (90) days, or by a fine not more than Five Hundred Dollars (\$500.00), or by both such ~~fine imprisonment and imprisonment fine~~.

B. Assault and battery shall be punishable by imprisonment in a county jail ~~not exceeding~~ for not more than six (6) months, or by a fine not more than One Thousand Dollars (\$1,000.00), or by both such ~~fine imprisonment and imprisonment fine~~.

C. Any person who commits any assault and battery against a current or former intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall, upon conviction, be guilty of domestic abuse. ~~Upon conviction, the defendant shall be punished~~ punishable by imprisonment in the county jail for not more than one (1) year, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine imprisonment and imprisonment fine~~. Upon conviction for a second or subsequent offense, the person shall be guilty of a Class B5 felony offense ~~and shall be punished~~ punishable by imprisonment in the custody of the Department of Corrections for not more than four (4) years, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine imprisonment and imprisonment fine~~. The provisions of Section 51.1 of this title shall apply to any second or subsequent offense.

D. 1. Any person who, with intent to do bodily harm and without justifiable or excusable cause, commits any assault, battery, or assault and battery upon an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes with any sharp or dangerous weapon, upon

conviction, is guilty of domestic assault or domestic assault and battery with a dangerous weapon which shall be a Class B3 felony offense punishable by imprisonment in the custody of the Department of Corrections ~~not exceeding for not more than~~ ten (10) years, or by imprisonment in a county jail ~~not exceeding for not more than~~ one (1) year. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction for a violation of this paragraph.

2. Any person who, without such cause, shoots an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes by means of any deadly weapon that is likely to produce death shall, upon conviction, be guilty of domestic assault and battery with a deadly weapon which shall be a Class A3 felony offense punishable by imprisonment in the custody of the Department of Corrections not exceeding life. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction for a violation of this paragraph.

E. 1. Any person convicted of domestic abuse committed against a pregnant woman with knowledge of the pregnancy shall be guilty of a Class B5 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than five (5) years.

2. Any person convicted of a second or subsequent offense of domestic abuse against a pregnant woman with knowledge of the pregnancy shall be guilty of a Class A3 felony offense punishable by imprisonment in the custody of the Department of Corrections for not less than ten (10) years.

3. Any person convicted of domestic abuse committed against a pregnant woman with knowledge of the pregnancy and a miscarriage occurs or injury to the unborn child occurs shall be guilty of a Class A1 felony offense punishable by imprisonment in the custody of the Department of Corrections for not less than twenty (20) years.

F. Any person convicted of domestic abuse as ~~defined~~ provided for in subsection C of this section that results in great bodily injury to the victim shall be guilty of a Class B3 felony offense ~~and punished~~ punishable by imprisonment in the custody of the Department of Corrections for not more than ten (10) years, or by imprisonment in the county jail for not more than one (1) year. The

provisions of Section 51.1 of this title shall apply to any second or subsequent conviction of a violation of this subsection.

G. Any person convicted of domestic abuse as ~~defined~~ provided for in subsection C of this section that was committed in the presence of a child shall ~~be punished by imprisonment in the county jail for not less than six (6) months nor more than one (1) year, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment.~~ Any person convicted of a second or subsequent domestic abuse as defined in subsection C of this section that was committed in the presence of a child shall, upon conviction, be guilty of a Class B5 felony offense ~~and shall be punished~~ punishable by imprisonment in the custody of the Department of Corrections for not less than one (1) year nor more than five (5) years, or by a fine not exceeding Seven Thousand Dollars (\$7,000.00), or by both such ~~fine imprisonment and imprisonment fine.~~ The provisions of Section 51.1 of this title shall apply to any second or subsequent offense. For every conviction of a domestic abuse crime in violation of any provision of this section committed against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes, the court shall:

1. Specifically order as a condition of a suspended or deferred sentence that a defendant participate in counseling or undergo treatment to bring about the cessation of domestic abuse as specified in paragraph 2 of this subsection;

2. a. The court shall require the defendant to complete an assessment and follow the recommendations of a ~~batterers'~~ batterers intervention program certified by the Attorney General. If the defendant is ordered to participate in a ~~batterers'~~ batterers intervention program, the order shall require the defendant to attend the program for a minimum of fifty-two (52) weeks, complete the program, and be evaluated before and after attendance of the program by program staff. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered ~~batterers'~~ batterers intervention program shall be prima facie evidence of the violation of the conditions of probation for the

district attorney to seek acceleration or revocation of any probation entered by the court.

- b. A program for anger management, couples counseling, or family and marital counseling shall not solely qualify for the counseling or treatment requirement for domestic abuse pursuant to this subsection. The counseling may be ordered in addition to counseling specifically for the treatment of domestic abuse or per evaluation as set forth below. If, after sufficient evaluation and attendance at required counseling sessions, the domestic violence treatment program or licensed professional determines that the defendant does not evaluate as a perpetrator of domestic violence or does evaluate as a perpetrator of domestic violence and should complete other programs of treatment simultaneously or prior to domestic violence treatment, including but not limited to programs related to the mental health, apparent substance or alcohol abuse or inability or refusal to manage anger, the defendant shall be ordered to complete the counseling as per the recommendations of the domestic violence treatment program or licensed professional;
- 3. a. The court shall set a review hearing no more than one hundred twenty (120) days after the defendant is ordered to participate in a domestic abuse counseling program or undergo treatment for domestic abuse to assure the attendance and compliance of the defendant with the provisions of this subsection and the domestic abuse counseling or treatment requirements. The court may suspend sentencing of the defendant until the defendant has presented proof to the court of enrollment in a program of treatment for domestic abuse by an individual licensed practitioner or a domestic abuse treatment program certified by the Attorney General and attendance at weekly sessions of such program. Such proof shall be presented to the court by the defendant no later than one hundred twenty (120) days after the defendant is ordered to such counseling or treatment. At such time, the court

may complete sentencing, beginning the period of the sentence from the date that proof of enrollment is presented to the court, and schedule reviews as required by ~~subparagraphs a~~ this subparagraph and subparagraph b of this paragraph and paragraphs 4 and 5 of this subsection. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered domestic abuse counseling or treatment program shall be prima facie evidence of the violation of the conditions of probation for the district attorney to seek acceleration or revocation of any probation entered by the court.

- b. The court shall set a second review hearing after the completion of the counseling or treatment to assure the attendance and compliance of the defendant with the provisions of this subsection and the domestic abuse counseling or treatment requirements. The court shall retain continuing jurisdiction over the defendant during the course of ordered counseling through the final review hearing;

4. The court may set subsequent or other review hearings as the court determines necessary to assure the defendant attends and fully complies with the provisions of this subsection and the domestic abuse counseling or treatment requirements;

5. At any review hearing, if the defendant is not satisfactorily attending individual counseling or a domestic abuse counseling or treatment program or is not in compliance with any domestic abuse counseling or treatment requirements, the court may order the defendant to further ~~or~~ continue counseling, treatment, or other necessary services. The court may revoke all or any part of a suspended sentence, deferred sentence, or probation pursuant to Section 991b of Title 22 of the Oklahoma Statutes and subject the defendant to any or all remaining portions of the original sentence;

6. At the first review hearing, the court shall require the defendant to appear in court. Thereafter, for any subsequent review hearings, the court may accept a report on the progress of the defendant from individual counseling, domestic abuse counseling, or

the treatment program. There shall be no requirement for the victim to attend review hearings; and

7. If funding is available, a referee may be appointed and assigned by the presiding judge of the district court to hear designated cases set for review under this subsection. Reasonable compensation for the referees shall be fixed by the presiding judge. The referee shall meet the requirements and perform all duties in the same manner and procedure as set forth in Sections 1-8-103 and 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees appointed in juvenile proceedings.

The defendant may be required to pay all or part of the cost of the counseling or treatment, in the discretion of the court.

H. As used in subsection G of this section, "in the presence of a child" means in the physical presence of a child; or having knowledge that a child is present and may see or hear an act of domestic violence. For the purposes of ~~subsections C and~~ subsection G of this section, "child" may be any child whether or not related to the victim or the defendant.

I. For the purposes of ~~subsections~~ subsection C and ~~G~~ of this section, any conviction for assault and battery against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall constitute a sufficient basis for a felony charge:

1. If that conviction is rendered in any state, county, or parish court of record of this or any other state; or

2. If that conviction is rendered in any municipal court of record of this or any other state for which any jail time was served; provided, no conviction in a municipal court of record entered prior to November 1, 1997, shall constitute a prior conviction for purposes of a felony charge.

J. Any person who commits any assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a Class B5 felony offense of domestic abuse by strangulation ~~and shall~~

~~be punished~~ punishable by imprisonment in the custody of the Department of Corrections for a period not less than one (1) year nor more than ten (10) years, or by a fine not more than Twenty Thousand Dollars (\$20,000.00), or by both such ~~fine imprisonment and imprisonment~~ fine. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction of a violation of this subsection. As used in this subsection, "strangulation" means any form of asphyxia~~+~~, including, but not limited to, asphyxia characterized by closure of the blood vessels or air passages of the neck as a result of external pressure on the neck or the closure of the nostrils or mouth as a result of external pressure on the head.

K. Any district court of this state and any judge thereof shall be immune from any liability or prosecution for issuing an order that requires a defendant to:

1. Attend a treatment program for domestic abusers certified by the Attorney General;
2. Attend counseling or treatment services ordered as part of any suspended or deferred sentence or probation; and
3. Attend, complete, and be evaluated before and after attendance by a treatment program for domestic abusers, certified by the Attorney General.

L. There shall be no charge of fees or costs to any victim of domestic violence, stalking, or sexual assault in connection with the prosecution of a domestic violence, stalking, or sexual assault offense in this state.

M. In the course of prosecuting any charge of domestic abuse, stalking, harassment, rape, or violation of a protective order, the prosecutor shall provide the court, prior to sentencing or any plea agreement, a local history and any other available history of past convictions of the defendant within the last ten (10) years relating to domestic abuse, stalking, harassment, rape, violation of a protective order, or any other violent misdemeanor or felony convictions.

N. Any plea of guilty or finding of guilt for a violation of subsection C, F, G, I, or J of this section shall constitute a

conviction of the offense for the purpose of this ~~act~~ section or any other criminal statute under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any ~~court-imposed~~ court-imposed probationary term; provided, the person has not, in the meantime, been convicted of a misdemeanor involving moral turpitude or a felony.

O. For purposes of subsection F of this section, "great bodily injury" means bone fracture, protracted and obvious disfigurement, protracted loss or impairment of the function of a body part, organ, or mental faculty, or substantial risk of death.

P. Any pleas of guilty or nolo contendere or finding of guilt to a violation of any provision of this section shall constitute a conviction of the offense for the purpose of any subsection of this section under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any sentence or ~~court-imposed~~ court-imposed probationary term.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____